

Respondents agree that a central disputed issue in the case is the date on which Ms. Gennet's beneficial interest in the 2012 Trust terminated. However, Respondents argue that none of the subject discovery has any tendency to resolve that central issue. Rather, Respondents argue that the issue is a threshold matter that will determine the proper scope of discovery on Ms. Gennet's claims. Specifically, Respondents argue that Ms. Gennet is not entitled to documents absent beneficiary status, yet the subject discovery, to which Respondents objected, seeks information and documents dated after Ms. Gennet's beneficiary status purportedly ended. Respondents contend that it is, therefore, appropriate to first determine the date that Ms. Gennet's beneficiary interest terminated before completing the subject discovery, in order to establish the proper scope of discovery and avoid Respondents' repeated objection to Ms. Gennet's discovery that the requested scope is too broad.

In that context, Respondents requested, during the parties' meet and confer, to bifurcate trial so that the issue regarding the date on which Ms. Gennet's beneficial interest terminated goes first and to stay all discovery motion deadlines until that threshold issue is determined. Ms. Gennet's counsel declined that request. On the day after Ms. Gennet filed her six discovery motions, Respondents filed a motion to bifurcate, which is set for hearing on October 6, 2026. Respondents' oppositions and Ms. Gennet's reply briefs on the six present discovery motions heavily discuss the propriety (or lack thereof) of bifurcation with respect to resolving the pending discovery disputes. Given that the bifurcation motion is not currently before the Court, the Court is unable to sufficiently determine the effect that a ruling thereon might have on the present discovery motions. That said, the Court finds it most efficient to consider the bifurcation motion before immersing itself in the six discovery motions. The Court's resources are limited. Thus, to the extent the bifurcation motion *might* obviate or narrow the issues that have manifested into six discovery motions, the interests of judicial economy are promoted by proceeding first with the bifurcation motion.

At the continued hearing, the Court will rule on the bifurcation motion and reset the hearing on the six discovery motions with (1) a direction for the parties to, prior to the reset discovery hearing, engage in further meet and confer efforts in a good faith attempt to informally resolve the motions, and (2) leave for supplemental briefing on the six discovery motions so that the parties can address the effect, if any, that the ruling on the bifurcation motion has on the discovery motions.

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In the Matter of Ronald Anthony Espinoza

26PR000179

PETITION TO DETERMINE SUCCESSION TO REAL PROPERTY (Pr. Code, § 13152)

TENTATIVE RULING: The Petition is GRANTED.